

HOUSE No. 3463

The Commonwealth of Massachusetts

PRESENTED BY:

Michelle L. Ciccolo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to restore the environmental fund.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michelle L. Ciccolo</i>	<i>15th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 3463

By Representative Ciccolo of Lexington, a petition (accompanied by bill, House, No. 3463) of Michelle L. Ciccolo for legislation to restore the clean environmental fund using revenue from unclaimed bottle deposits. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to restore the environmental fund.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 323D of said chapter 94, as so appearing, is hereby amended by
2 striking out the third sentence and inserting in place thereof the following sentence:- “The first
3 \$70 million in such amounts collected by the commissioner of revenue each fiscal year shall be
4 deposited in the General Fund and additional amounts collected by the commissioner of revenue
5 each fiscal year shall be deposited in the Clean Environment Fund established pursuant to section
6 323G.”

7 SECTION 2. Said chapter 94 of the General Laws, as so appearing, is hereby amended by
8 inserting after section 323E the following section:-

9 Section 323G. (a) There shall be established on the books of the commonwealth a
10 separate fund to be known as the Clean Environment Fund. Amounts deposited in said fund shall
11 be used, subject to appropriation, solely for programs and projects in the management of solid

waste, environmental protection and climate change mitigation; provided, however, that no funds shall be used for costs associated with incineration.

(b) Not less than forty percent of amounts deposited in the Fund shall be used for recycling, composting and solid waste source reduction projects and programs, including reuse and refill.

(c) Not less than an additional ten percent of amounts deposited in the Fund shall be used for recycling and other solid waste projects and programs.

(d) Not more than fifty percent of amounts deposited in the fund shall be used for other environmental programs consistent with the purposes of the “bottle bill” so-called, including department administration and enforcement, and further including the provision of clean water and sewer and improvements to storm water management.

SECTION 3. Section 326 of said chapter 94, as so appearing, is hereby amended by striking out, in line 4, the words “three hundred and twenty-three F” and inserting in place thereof the following words:- section 323G.”